

Court No. - 21

Case :- WRIT - C No. - 23279 of 2024

Petitioner :- Sangram Singh Yadav

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Shyam Sunder Maurya

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. Learned Counsel for the Electricity Department prays for and is granted one week time to obtain instructions in the matter.

2. Put up this case as fresh on **5.8.2024**.

Order Date :- 24.7.2024

S. Singh

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 23279 of 2024

Petitioner :- Sangram Singh Yadav

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Shyam Sunder Maurya

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. The instant petition has been filed praying for quashing of the order of final assessment dated 17.05.2024 passed by respondent No. 4 as well as notice dated 14.03.2024 issued prior to order of final assessment.

2. Submission in brief is that petitioner had filed detailed objections and the same have also been noted in the order of final assessment. However, without dealing with the objections, the Assessing Officer has confirmed the notice of provisional assessment.

3. We find sufficient force in the submission. The Assessing Officer has not at all applied his mind to the objections filed by the petitioner against the notice of provisional assessment. Clause 6.8 of the Electricity Supply Code, 2005 specifically provide that the consumer would be entitled to file objection against the notice of provisional assessment and hearing so that the objections against the proposed assessment are dealt with.

4. In the past, the Managing Director of the concerned DISCOM had filed his personal affidavit and assured the Court that he would monitor the assessment orders being passed so that the procedural compliances are duly made. However, in the instant case, we find that once again the Assessing Officer is quite oblivious of the

obligations cast upon him under law.

5. A short counter affidavit has been filed by the concerned Executive Engineer admitting that the final assessment order is not in accordance with law. The explanation given for passing such an order is alleged technical error. We decline to accept the explanation as the error is not a technical one but a case of total non application of mind.

6. We require the Managing Director to examine the said aspect and disclose by filing his personal affidavit the steps he proposes to take in the matter.

7. In the meantime, having regard to the stand taken by respondent No. 4, we permit him to withdraw the impugned assessment order and to proceed afresh strictly in accordance with law.

8. List as fresh on 29 August 2024.

9. Shri Udit Chandra will communicate the instant order to the Managing Director of the concerned DISCOM for proper compliance.

Order Date :- 5.8.2024

Mukesh Kr.

(Manish Kumar Nigam,J.)

(Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 23279 of 2024

Petitioner :- Sangram Singh Yadav

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Shyam Sunder Maurya

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. An affidavit of Managing Director, Purvanchal Vidyut Vitran Nigam Ltd, Varanasi has been filed in compliance of previous order of this Court. It is stated that the department had issued SOP dated 16.04.2024 to guide the Assessing Officer in making assessments in case of theft and unauthorized use of electricity. The assessment cases are being monitored at the level of Superintendent Engineer and Chief Engineer. It is indicated in the affidavit that the Executive Engineer, who had passed the assessment order, has been charge-sheeted. A show cause notice has been issued to Superintendent Engineer and warning to Chief Engineer (Distribution). A reassurance has been extended to the Court that those found violating the SOP would be dealt with in accordance with law.

2. Shri Udit Chandra, learned counsel appearing for DISCOM prays for and is granted ten days' time to bring on record the figure of cases in which the department had discovered violation of SOP and the procedure prescribed for assessment under the Act and the Electricity Supply Code, 2006 and also action taken in such cases. While giving the aforesaid figures, it shall clearly be disclosed whether action in such cases had been taken independently or after this Court had taken cognizance of the matter and sought response from the Managing Director.

3. List as fresh on 10 September 2024.

Order Date :- 29.8.2024

Mukesh Kr.

(Manish Kumar Nigam,J.) (Manoj Kumar Gupta,J.)

Court No. - 21

Case :- WRIT - C No. - 23279 of 2024

Petitioner :- Sangram Singh Yadav

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Shyam Sunder Maurya

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. Perused the affidavit filed by the Managing Director, Purvanchal Vidhyut Vitran Nigam Limited, Varanasi. It reveals that in course of monitoring cases relating to assessments, the authorities could find only one case of violation of the procedure so as to proceed against the concerned Officer departmentally.

2. We may note that several cases have come up before this Court even after Standard Operating Procedure was laid down where we found that the procedure is not being followed.

3. Sri Udit Chandra, learned counsel for the Department, submits that the Managing Director of Purvanchal Vidhyut Vitran Nigam Limited, Varanasi is serious in ensuring faithful compliance of the requirements of law and in case of infraction, to proceed against the errant Officer. He prays for three weeks' time to file a fresh affidavit disclosing the details of the manner in which monitoring has been done and the number of cases in which the authorities have found deviation from the prescribed procedure and action if any, taken to remedy the same.

4. Accordingly, put up this case as fresh on 01.10.2024.

Order Date :- 10.9.2024

Nitika Sri.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 23279 of 2024

Petitioner :- Sangram Singh Yadav

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Shyam Sunder Maurya

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. Supplementary affidavit has been filed by the learned counsel for the petitioner stating that he has received notice dated 09.08.2024 inviting objections from him against the proposed assessment as well as order of final assessment dated 27.08.2024 in one envelope. Thus, according to him, again he has not been given proper notice to file objection against the proposed assessment.
2. In compliance of our previous order, the Managing Director of the concerned DISCOM has filed affidavit and the same is taken on record.
3. Sri Udit Chandra, learned counsel for Electricity Department, prays for time to controvert the affidavit filed today by counsel for the petitioner taking the aforesaid plea. Accordingly, two weeks' time is granted to the Electricity Department to file affidavit in rebuttal to the supplementary affidavit of the petitioner.
4. List as fresh on 18 October, 2024.
5. In the meantime, the effect and operation of the order of final assessment dated 27.08.2024 shall remain stayed till the next date.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Order Date :- 1.10.2024

gp

Court No. - 21

Case :- WRIT - C No. - 23279 of 2024

Petitioner :- Sangram Singh Yadav

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Shyam Sunder Maurya

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikas Budhwar, J.

1. Counter affidavit filed by respondent no.4 in response to the supplementary affidavit of the petitioner is taken on record.
2. It transpires therefrom that in the notice of provisional assessment, 30.8.2024 was fixed as date for hearing whereas the order of final assessment was passed on 27.8.2024.
2. Respondent no.4 has tried to explain in his affidavit that in fact the order was passed on 31.8.2024 and inadvertently he mentioned 27.8.2024 as the date on the order of final assessment.
3. The final assessment order is Patrank no.4191 the notice of provisional assessment is Patrank no.3934.
4. Let the register maintained by the department in relation to issuance of official letters having relevant entries pertaining to Patrank no.3934 and 4191 be produced before this Court on the next date.
5. List as fresh on 12.11.2024.
6. Interim order to continue till the next date of listing.

Order Date :- 18.10.2024

piyush

(Vikas Budhwar, J.) (Manoj Kumar Gupta, J.)

Court No. - 3

Case :- WRIT - C No. - 23279 of 2024

Petitioner :- Sangram Singh Yadav

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Shyam Sunder Maurya

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Anjani Kumar Mishra, J.

Hon'ble Jayant Banerji, J.

1. Pursuant to the order dated 18.10.2024 passed by this Court, a register titled 'Dispatch Register' has been produced before us, which is unpagged and starts with serial number 2288 bearing date 27.5.2024.

2. We have perused the personal affidavits filed previously by Shri Shambhu Kumar, Managing Director of Purvavanchal Vidyut Vitran Nigam Limited, Varanasi. On perusal of the affidavits, it appears that action against the officials of the Nigam is stated to have been taken by initiating departmental proceedings by issue of a charge-sheet and several show causes notices, the dates of which precede the third affidavit of compliance dated 1.10.2024 filed by that deponent. However, despite the statement appearing in paragraph 13 in the third affidavit of compliance, that the deponent is not at all protecting any official who is violating this Court's order and they would be dealt with harshly and without any mercy, we find that apart from enclosing the aforesaid charge-sheet and the show cause notices, subsequent action against the erring officials has not been disclosed. It is for the deponent to demonstrate and establish the averments made in his own affidavit. Under the circumstances, the Managing Director of PuVVNL is directed to file an affidavit bringing on record the requisites.

3. The aforesaid dispatch register produced today is being returned to Shri Udit Chandra, learned counsel appearing for the respondent no.4, who shall produce it again before this Court on the next date for its perusal in view of the order dated 18.10.2024 passed by this Court.

4. List this matter as fresh on 26.11.2024.

Order Date :- 12.11.2024

SK

Court No. - 3

Case :- WRIT - C No. - 23279 of 2024

Petitioner :- Sangram Singh Yadav

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Shyam Sunder Maurya

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Anjani Kumar Mishra, J.

Hon'ble Jayant Banerji, J.

Sri Udit Chandra who appears for the respondent prays for and is granted 24 hours time to comply with the order dated 12.11.2024.

Put up as fresh tomorrow i.e. on 27.11.2024.

Order Date :- 26.11.2024

Himanshu

Court No. - 29

Case :- WRIT - C No. - 23279 of 2024

Petitioner :- Sangram Singh Yadav

Respondent :- State Of Up And 3 Others

Counsel for Petitioner :- Shyam Sunder Maurya

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Vivek Kumar Birla, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

1. Heard Shri Shyam Sunder Maurya, learned counsel for the petitioner, Shri Udit Chandra, learned counsel appearing for the respondent no.4 as well as learned Standing Counsel for the State respondent nos.1 and 2.

2. Present petition has been filed seeking following reliefs:

"(i) Issue a writ order or direction in the nature of certiorari quashing order dated 17.05.2024 passed by respondent no.4 as well as consequential order dated 14.03.2024 passed by respondent no.4.

(ii) Issue a writ order or direction in the nature of mandamus directing the respondents not to recover the amount i.e. Rs.5,12,498/- from the petitioner in pursuance of the order dated 14.03.2024."

3. Learned counsel for the parties agree that now amount has already been adjusted and the petition has become infructuous.

4. Accordingly, the writ petition stands dismissed as having become infructuous.

Order Date :- 27.11.2024

Nitendra